



### CHAPTER cxxxiii.

An Act to confirm certain Provisional Orders of the Local Government Board for Ireland relating to the Urban Districts of Blackrock and Donaghadee. [18th August 1911.] A.D. 1911.

**W**HEREAS the Local Government Board for Ireland (hereinafter referred to as "the Local Government Board") have made the Provisional Orders set forth in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1907:

And whereas it is requisite that the said Orders should be confirmed by Parliament and that the provisions herein contained should be enacted with reference to those Orders:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Orders set out in the schedule hereto are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in schedule confirmed.

2. The respective urban district councils mentioned in the Orders hereby confirmed shall not under the respective powers of those Orders purchase or acquire in any urban district any house or houses which on the fifteenth day of December last were occupied either wholly or partially by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board any house or houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction of power to take houses of working class.



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If either of the said district councils acquire or appropriate any house or houses for the purposes of the Order relating to their district in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

For the purposes of this section the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artizans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own families and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Short title.

**3.** This Act may be cited as the Local Government Board (Ireland) Provisional Orders Confirmation (No. 3) Act 1911.



S C H E D U L E.

A.D. 1911.

URBAN DISTRICT OF BLACKROCK.

*Provisional Order to enable the Council of the Urban District of Blackrock to put in force the Compulsory Clauses of the Lands Clauses Acts.*      *Blackrock.*

WHEREAS the council of the urban district of Blackrock (in this Order referred to as "the district council") require to purchase and take the lands and premises described in Part I. of the schedule hereto for the purpose of widening a certain street at Temple Hill in their district and the lands and premises described in Part II. of the schedule hereto for the purpose of widening a certain street at Williamstown in their district:

Now therefore We the Local Government Board for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect namely:—

1. The district council shall be empowered to put in force with reference to the lands and premises described in the respective Parts of the schedule hereto and for the respective purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with respect to the purchase and taking of lands otherwise than by agreement or any of them.

2. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of the rate applicable by that council to defray the expenses incurred by them in the execution of the Public Health (Ireland) Acts 1878 to 1907.

3. This Order may be cited as the Blackrock Order 1911.



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*Blackrock.*

SCHEDULE.

COUNTY OF DUBLIN.

Urban District of BLACKROCK.

PART I.

Townland of TEMPLEHILL—Parish of MONKSTOWN.

| Reference to deposited Plan. | Description of Lands.                                    | Owners or reputed Owners. | Lessees or reputed Lessees. | Occupiers.               |
|------------------------------|----------------------------------------------------------|---------------------------|-----------------------------|--------------------------|
| 1                            | Lands and premises at Templehill House containing 30½ p. | Thomas J. Farley.         | Patrick Mahon Power D.L.    | Patrick Mahon Power D.L. |

PART II.

Townland of WILLIAMSTOWN—Parish of BOOTERSTOWN.

| Reference to deposited Plan. | Description of Lands.                             | Owners or reputed Owners. | Lessees or reputed Lessees.                            | Occupiers.        |
|------------------------------|---------------------------------------------------|---------------------------|--------------------------------------------------------|-------------------|
| 1                            | Lands and premises at "Rosefield" containing 4 p. | Earl of Pembroke.         | Spencer L. Kelly<br>Anna Eliza Kelly<br>Harford Kelly. | Anna Eliza Kelly. |

Given under our seal of office this twentieth day of April in the year of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) T. J. STAFFORD.



URBAN DISTRICT OF DONAGHADEE.

A.D. 1911.

*Provisional Order to enable the Council of the Urban District Donaghadee.  
of Donaghadee to put in force the Compulsory Clauses  
of the Lands Clauses Acts.*

WHEREAS the urban district council of Donaghadee (in this Order referred to as "the district council") require to purchase and take the lands and premises described in Part I. of the schedule hereto for the purpose of providing a supply of water for their district and the lands and premises described in Part II. of the schedule hereto for the purpose of providing a system of sewerage for their district:

Now therefore We the Local Government for Ireland in pursuance of the powers given to Us by section 203 of the Public Health (Ireland) Act 1878 and of all other powers enabling Us in that behalf do hereby order that from and after the date of the Act confirming this Order the following provisions shall have effect (namely):—

41 & 42 Vict.  
c. 52.

1. The district council shall be empowered to put in force with reference to the lands and premises described in Part I. and Part II. respectively of the schedule hereto and for the respective purposes aforesaid the powers of the Lands Clauses Acts as amended by section 8 of the Public Health (Ireland) Act 1896 with reference to the purchase and taking of lands otherwise than by agreement or any of them.

59 & 60 Vict.  
c. 54.

2. For the purposes of this Order the expression "land" in the Lands Clauses Acts shall include the lands and premises described in the schedule hereto.

3. The district council shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the district council shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this article the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges



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A.D. 1911. of the district council and the amount of such costs and charges shall  
*Donaghadee.* be a debt due from the district council to the Crown and shall be  
recoverable as a Crown debt or summarily.

4. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the district council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or right of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

5. The costs and expenses of the district council and the Local Government Board for Ireland incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the district council out of the rate applicable by that council to defray the expenses incurred by them in the execution of the Public Health (Ireland) Acts 1878 to 1907.

6. This Order may be cited as the Donaghadee (Waterworks and Sewerage) Order 1911.

**SCHEDULE.**

COUNTY OF DOWN.

PART I.

Rural District of NEWTOWNARDS.

Townland of CARRYREAGH—Parish of DONAGHADEE.

| Reference to deposited Plan. | Description of Lands.         | Owners or reputed Owners. | Lessees or reputed Lessees. | Occupiers.                |
|------------------------------|-------------------------------|---------------------------|-----------------------------|---------------------------|
| 1                            | Field containing 1a. 2r. 28p. | George L. Delacherois.    | William John Kirkpatrick.   | William John Kirkpatrick. |



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(Ireland) *Provisional Orders Confirmation (No. 3) Act, 1911.*

PART II.

A.D. 1911.

Urban District of DONAGHADEE.

*Donaghadee.*

Townland of TOWNPARKS OF DONAGHADEE—Parish of DONAGHADEE.

| Reference<br>to<br>deposited<br>Plan. | Description of Lands.                   | Owners<br>or reputed<br>Owners. | Lessees or<br>reputed<br>Lessees. | Occupiers.      |
|---------------------------------------|-----------------------------------------|---------------------------------|-----------------------------------|-----------------|
| 6                                     | Land containing 1 a. or<br>thereabouts. | Charles<br>C. Craig.            | —                                 | David Campbell. |

Given under our seal of office this fifth day of May in the year  
of our Lord one thousand nine hundred and eleven.

(L.S.)

(Signed) T. J. STAFFORD.

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